

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.:
Date Purchased:

-----X
JEFF STROY,

SUMMONS

Plaintiff,

Plaintiffs designate KINGS
County as the place of trial.

-against-

The basis of venue is:
Plaintiff's Residence

THE CITY OF NEW YORK and P.O. WAYNE JENKINS
Shield #12030,

Plaintiff resides at:
Kings County

Defendants,

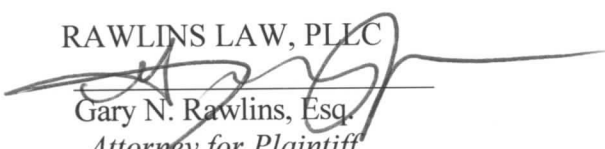
County of Kings

To the above named Defendant:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: August 24, 2017
White Plains, NY

RAWLINS LAW, PLLC


Gary N. Rawlins, Esq.

Attorney for Plaintiff

JEFF STROY

777 Westchester Avenue, Suite #101

White Plains, NY 10604

Tel: (212) 926-0050

Fax: (347) 332-1592

TO:

THE CITY OF NEW YORK
Zachary Carter, Esq.
New York City Law Department
100 Church Street
New York, New York 10007

P.O. WAYNE JENKINS Shield #12030
79th Precinct
263 Tompkins Ave,
Brooklyn, NY 11216

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.:
Date Purchased:

-----X
JEFF STROY,

Plaintiff,

-against-

**VERIFIED
COMPLAINT**

THE CITY OF NEW YORK and P.O. WAYNE
JENKINS Shield #12030,

Defendants.

-----X

Plaintiff, by his attorney, **GARY N. RAWLINS**, as and for his Verified Complaint,
respectfully alleges, upon information and belief:

1. This is a civil litigation action seeking damages against defendants for committing acts under color of law, and depriving plaintiff of rights secured by the Constitution and laws of the United States. Defendants, while acting in their capacities as policemen of the City of New York, State of New York, deprived Plaintiff of his liberty without due process of law, thereby depriving Plaintiff of his rights, privileges and immunities as guaranteed by the Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States. The Court has jurisdiction of this action under 42 U.S.C. § 1983, 28 U.S.C. § 1343, and 28 U.S.C. § 1331.
2. The Plaintiff, at all times herein mentioned was and still is a resident of the County of KINGS and the State of New York.
3. At all times mentioned herein, Defendant **P.O. WAYNE JENKINS Shield #12030**, at all times herein mentioned was and still is a resident of the County of KINGS, State of New York.

4. At all times herein mentioned, Defendant **CITY OF NEW YORK** ("NYC"), was and still is a municipal corporation, created, organized and existing under and by virtue of the laws of the State of New York.

5. At all times herein mentioned, Defendants **NYC** and Defendant **P.O. WAYNE JENKINS Shield #12030**, stood in such a relationship with each other in providing law enforcement services as to make each liable for the acts and omissions of the others.

6. Defendants **NYC** are vicariously liable for the acts of Defendant **P.O. WAYNE JENKINS Shield #12030**.

7. At all times herein mentioned, Defendant **P.O. WAYNE JENKINS Shield #12030** was and still is a police officer employed by the New York City Police Department.

**AS AND FOR A FIRST 1983 CAUSE OF ACTION FOR FALSE ARREST AND
MALICIOUS PROSECUTION AS AGAINST ALL DEFENDANTS IN VIOLATION OF
PLAINTIFF'S UNITED STATES CONSTITUTIONAL RIGHTS**

8. Plaintiff **JEFF STROY** repeats and re-alleges each and every allegation contained in the above paragraphs with full force and effect as if each were more fully set forth herein.

9. Plaintiff **JEFF STROY** sues all Defendants in their capacities.

10. On or about June 29, 2016, at approximately 7:50pm, Plaintiff **JEFF STROY** was with his cousin and his cousin's son at or about 251 Tompkins Avenue, Brooklyn, NY 11216. His cousin Cordell Jones went in the store and his son went in the store to bring his father the phone.

Someone then jumped in Mr. Jones' care and sped off. Mr. Stroy and Mr. Jones pursued the stolen vehicle using Mr. Stroy's vehicle operated by a third person. The operator of the stolen vehicle crashed Mr. Jones' car. When the third person stopped Plaintiff's car, as Mr. Jones' stolen vehicle had crashed/stopped, Mr. Stroy was then arrested by **P.O. WAYNE JENKINS Shield #12030** for Excessive Speed and Reckless Driving even though Plaintiff was not driving the vehicle. Plaintiff was then brought to the 79th Precinct located at 263 Tompkins Ave, Brooklyn, NY 11216 then Central Bookings located at 120 Schermerhorn St Brooklyn, NY 11201 and incarcerated for approximately 18 hours before seeing a judge the next morning and being released on his own recognizance. All charges were dismissed on March 7, 2017.

11. The wrongful, unjustifiable and unlawful apprehension, arrest, detention and imprisonment were all carried out without a warrant or probable cause.

12. At all relevant times, Defendants acted forcibly in apprehending, arresting and imprisoning Plaintiff **JEFF STROY**.

13. Prior to June 29, 2016, the City of New York, the New York Police Department developed and maintained policies or customs exhibiting deliberate indifference to the constitutional rights of citizens, which caused the violation of Mr. Stroy's rights. It was the policy and/or custom of the City of New York to inadequately and improperly investigate citizens' complaints of police misconduct and actual acts of misconduct; and acts of misconduct were instead tolerated by the City of New York. It was the policy and/or custom of the City of New York to inadequately supervise and train its police officers, managers and employees including the respondent officers and ADA'S thereby failing to adequately discourage further constitutional violations on the part of their agents. Officers were encouraged and often harassed to make as many arrest as possible without concern for the validity of those arrests. The respondents agencies did not require appropriate in-service training or re-training of officers and employees who were known to have engaged in misconduct or who had shown a propensity to encourage rule violations for their own convince at the expense of others.

**AND FOR A SECOND CAUSE OF ACTION FOR ASSAULT
IN VIOLATION OF HIS CONSTITUTIONAL RIGHTS**

14. Plaintiff **JEFF STROY** repeats and re-alleges each and every allegation contained above as if fully set forth herein.

15. Defendant **P.O. WAYNE JENKINS Shield #12030** caused Plaintiff to apprehend and/or fear unfriendly contact.

16. A reasonable person in the same circumstances as Plaintiff would have apprehended and/ or feared unfriendly contact.

17. Defendant **P.O. WAYNE JENKINS Shield #12030** assaulted Plaintiff in violation of his civil rights.

18. Due to the Defendants' assault, Plaintiff **JEFF STROY** is entitled to damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter.

AS AND FOR A THIRD CAUSE OF ACTION
FOR NEGLIGENT HIRING AND SUPERVISION

19. Plaintiff repeats and re-iterates each and every allegation above as if set forth at length herein.

20. Prior to on or about June 29, 2016, Defendant **NYC**, knew or should have known Defendant **P.O. WAYNE JENKINS Shield #12030** to be unruly and to verbally threaten and to harass other human beings.

21. That defendant **NYC** negligently hired and trained **P.O. WAYNE JENKINS Shield #12030**, negligently failed to supervise or discharge them from their employ, thereby causing and contributing to the above stated incident.

22. Plaintiff was caused to sustain serious injuries, caused to suffer pain, offense, shock and mental anguish; that these injuries and their effects will be permanent; and as a result of said injuries Plaintiff has been caused to incur, and will continue to incur expenses for medical care and attention; Plaintiff was and will continue to be rendered unable to perform his normal activities and duties having sustained a resultant loss there from.

AS AND FOR A FOURTH CAUSE OF ACTION
FOR EGREGIOUS CONDUCT

23. That as a result of the foregoing, Plaintiff was damaged in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter.

24. Plaintiffs repeat and re-allege each and every allegation set forth above with the same force and effect as if set forth at length herein.

25. The acts of **NYC and P.O. WAYNE JENKINS Shield #12030** complained of herein were performed with malice and willful intent and are beyond the bounds of a civilized society, especially here where Defendants knew they did not have just cause from the outset to arrest and detain Plaintiff.

26. Plaintiff was caused to sustain serious injuries and to suffer pain, shock, mental anguish, embarrassment, humiliation, anxiety and bodily injury.

27. That as a result of the foregoing, Plaintiff **JEFF STROY** seeks punitive damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR FAILURE
TO INTERVENE TO PREVENT THE VIOLATION OF PLAINTIFF'S CIVIL
RIGHTS AS AGAINST ALL DEFENDANTS**

28. Plaintiff **JEFF STROY** repeats and re-alleges each and every allegation contained in the paragraphs above with full force and effect as if each were more fully set forth herein.

29. As a result of the above actions, Defendants **NYC**, individually, and/or vicariously, by and through its agents, servants and /or employees, and **OFFICER**, failed to intervene to prevent or end the unlawful conduct inflicted upon Plaintiff **JEFF STROY** by defendant **OFFICER**.

30. As a result of the foregoing, Defendants **NYC** individually and and/or vicariously by and through their agents servants, and/or employees, and **OFFICER**, displayed a deliberate indifference to Plaintiff **JEFF STROY** rights to be free from unreasonable searches and seizures.

31. As a result of the foregoing, Defendants **NYC** individually and/or vicariously by and through its agents servants, and/or employees, including **P.O. WAYNE JENKINS Shield #12030** acted intentionally, willfully, maliciously, with reckless disregard for and deliberate indifference to Plaintiffs rights and physical well being.

32. By reason of the foregoing, Plaintiff sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

AS AND FOR A SIXTH CAUSE OF ACTION
FOR INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS
AGAINST ALL DEFENDANTS

33. Plaintiff **JEFF STROY** repeats and re-alleges each and every allegation contained in paragraphs above with full force and effect as if each were more fully set forth herein

34. The Defendants, and each of them, acted outrageously for their above-stated roles in the wrongful stop, detainment, charging, failing to investigate, failure to adhere to law, rule and regulations known to them, failing to heed Plaintiff **JEFF STROY** protestations, manhandling, false arrest, prolonged captivity, intimidation and public humiliation of Plaintiff.

35. Said emotional harm was exacerbated by the persistence of Defendants, by maintaining the false claims and criminal charges against the Plaintiff **JEFF STROY** without any further investigation of the incident. Defendants knew or had reasons to know that the criminal charges against Plaintiff were false or without merit, yet that they detained and prosecuted Plaintiff with the intention of causing further harm and duress to the Plaintiff.

36. Defendants knew that their conduct would cause severe and extreme emotional harm to the Plaintiff **JEFF STROY** and injury to his good name and reputation.

37. Said harm did in fact occur in this case, in that Plaintiff **JEFF STROY** was debilitated to the point where he still suffers from episodes of anxiety, anger, loss of sleep, and other impingement of the emotional good health; to the extent that Plaintiff have had to seek support and counseling within the family.

38. By reason of the foregoing, Plaintiff **JEFF STROY** sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

AS AND FOR AN SEVENTH CAUSE OF ACTION
FOR PUNITIVE DAMAGES
AGAINST ALL DEFENDANTS

39. Plaintiff **JEFF STROY** repeats and re-alleges each and every allegation contained in paragraphs above with full force and effect as if each were more fully set forth herein.

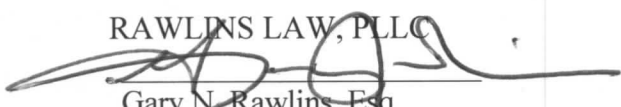
40. Defendants' acts were reckless, willful, wanton, malicious, oppressive, outrageous, outside the bounds of conduct tolerated in a civil society, without regard for Plaintiff well being, and were based on a lack of concern and ill-will towards Plaintiff.

41. Plaintiff **JEFF STROY** therefore demands punitive damages in the amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

WHEREFORE, Plaintiff demands judgment against the Defendants in each separate cause of action in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter; together with the costs and disbursements of this action.

Dated: August 24, 2017
White Plains, NY

RAWLINS LAW, PLLC


Gary N. Rawlins, Esq.

Attorney for Plaintiff

JEFF STROY

777 Westchester Avenue, Suite #101
White Plains, NY 10604
Tel: (212) 926-0050
Fax: (347) 332-1592

TO:

THE CITY OF NEW YORK
Zachary Carter, Esq.
New York City Law Department
100 Church Street
New York, New York 10007

P.O. WAYNE JENKINS Shield #12030
79th Precinct
263 Tompkins Ave,
Brooklyn, NY 11216

PLAINTIFF'S VERIFICATION

STATE OF NEW YORK, COUNTY OF KINGS, ss:

JEFF STROY, being duly sworn, says:

I am a Plaintiff in the action herein: I have read the annexed

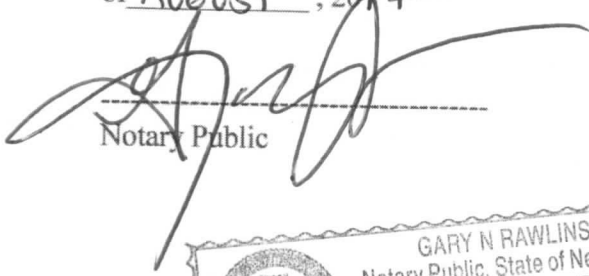
COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my personal files.

DATED: New York, NY
AUGUST 28, 2017



Sworn to before me this 28 day
of AUGUST, 2017


Notary Public

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.:
Date Purchased:

-----X
JEFF STROY,

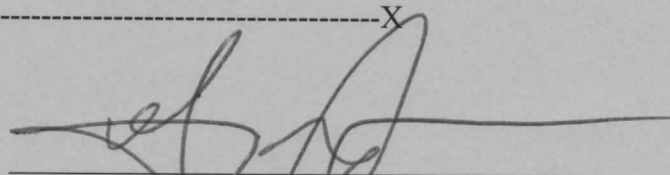
Plaintiff,

**SUMMONS AND VERIFIED
COMPLAINT**

-against-

THE CITY OF NEW YORK and P.O. WAYNE JENKINS
Shield #12030,

Defendants,
-----X



RAWLINS LAW, PLLC
Attorney for Plaintiff
777 Westchester Ave, Suite #101
White Plains, NY 10604
P:(212) 926-0050
F:(347)332-1592

TO:

THE CITY OF NEW YORK
Zachary Carter, Esq.
New York City Law Department
100 Church Street
New York, New York 10007

P.O. WAYNE JENKINS Shield #12030
79th Precinct
263 Tompkins Ave,
Brooklyn, NY 11216